

PROPERTY DISCLOSURE AND LEGAL ENCUMBRANCE REPORT

Property Identification: Malabar Heritage Annex, Plot 44-B, Survey No. 210/4, Ward D.

Date of Report: October 12, 2025

1. ZONING AND LAND USE

The subject property was originally classified under Residential Zone R-1 in the 1998 municipal development plan. However, following the 2014 urban corridor expansion, the primary zoning was amended to Mixed-Use Commercial (C-3) under municipal variance order V-882. Importantly, the rear 40% of the plot falls under the Coastal Regulation Zone (CRZ-II), strictly prohibiting any new permanent structures, excavations, or expansions beyond the existing plinth area. The front portion is permitted for commercial use up to 3 stories, but any hospitality business (restaurants, cafes) requires a specialized No Objection Certificate (NOC) from the local fire department due to the narrow 12-foot access road.

2. EASEMENTS AND ENCUMBRANCES

There is a documented right-of-way easement dating back to 1972 favoring the adjacent property (Plot 44-C). This easement grants the neighbors perpetual access to a shared borewell located on the north-eastern corner of our subject property. Furthermore, a high-tension electrical line traverses the southern boundary. As per the State Electricity Board mandate (Directive 2021/HT-44), a 5-meter radial clearance zone must be maintained where no construction or tall tree planting is permitted.

3. PENDING LITIGATION AND DISPUTES

Prospective buyers must be aware of an active civil suit (Case Ref: CS-2023-8891) pending in the City Civil Court. The dispute was filed by the original owner's estranged sibling claiming a 15% undivided share in the ancestral land. While the lower court dismissed the stay order on property transfer in January 2024, the title cannot be considered 100% marketable and free from defect until the final appellate hearing scheduled for November 2026.

4. STRUCTURAL AND HERITAGE STATUS

The main residential bungalow on the property was constructed in 1935 and is currently under review by the Urban Heritage Conservation Committee for a "Grade II-B Heritage"

tag. If this tag is approved, the buyer will be legally prohibited from altering the external facade, changing the roof tiles, or demolishing the structure. Internal modifications are allowed but require a 6-month approval process from the Heritage Board.

5. TAXES AND LIENS

Property taxes are fully paid up to the financial year 2024-2025. However, there is an outstanding water tax penalty of ₹45,500 due to an unregistered commercial water connection discovered in 2022. This lien must be cleared prior to the execution of the sale deed.